

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;
CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.;
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO.
011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S;
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;
YANG MING MARINE TRANSPORT CORP.; AND
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

DOCKET NO. 20-14

Served: February 23, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER REQUIRING JOINT STATUS REPORT

On February 13, 2024, the Commission issued an Order Affirming Initial Decision and Remanding for Further Proceedings (“Commission Order”). The Commission affirmed the Initial Decision Partially Granting Summary Decision (“Initial Decision” or “I.D.”) and remanded the proceeding “to resolve the remaining claims and for further proceedings consistent with this Order.” Commission Order at 72.

The Initial Decision addressed motions for summary decision for four geographic regions: Los Angeles/Long Beach, Chicago, Savannah, and Memphis. The parties were given an opportunity to appeal the Initial Decision “prior to determining next steps, including final briefing on the remaining issues in these four regions and discovery regarding other geographic regions.” I.D. at 5. Remaining issues include allegations relating to whether withdrawal from an interoperable chassis pool violates section 41102(c) and whether reparations are appropriate. I.D. at 5, 52, 57.

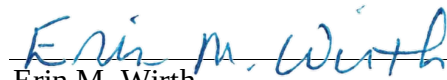
Regarding interoperable chassis pools, the Commission indicated that it “has authority to decide whether an ocean carrier acted unreasonably or unjustly in withdrawing from an interoperable pool” but that it is necessary to determine: whether complainant “has demonstrated actual harm that can be addressed by the Commission, either in the form of reparations or a cease-and-desist order” and “if the appropriate remedy is a cease-and-desist order, whether that order can issue and provide meaningful relief without requiring action or forbearance by non-

regulated entities.” Commission Order at 62-63. The Commission expressed “no view” regarding reparations. Commission Order at 32 n.24.

The parties must confer regarding next steps and file a joint remand status report with proposed schedule by March 25, 2024. In the joint remand status report, the parties should discuss for Los Angeles/Long Beach, Chicago, Savannah, and Memphis whether any issues remain in addition to interoperable chassis pools and reparations and, for the remaining issues, whether any discovery is needed before briefing on the merits. If discovery is sought, the parties must explain the scope of the discovery and its relevance to the remaining issues.

In the joint status report, the parties should also propose a schedule for, and approach to, other geographic areas. This approach may include geographic limitations or summary dispositions. For example, the parties may consider whether discovery is required for other regions governed by CCM Rules and if so, whether that discovery may be limited. The parties should also identify other regions covered by interoperable pools and whether discovery is needed for those regions. The parties should propose a schedule for addressing all remaining issues and locations. That schedule may include briefing on issues for which no discovery or limited discovery is needed, simultaneously with, or prior to, conducting discovery on issues for which broader discovery is required.

For the reasons set forth above, the parties are hereby **ORDERED** to confer and to file a joint status report with proposed schedule by March 25, 2024.


Erin M. Wirth
Chief Administrative Law Judge